

FIRST ENDORSEMENT

Chief Prosecutor, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, May 9, 2025. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-24870, against Sergeant Andrew Fitts, Tax Registry No. 938484. The case was conferenced on May 1, 2025, before Assistant Deputy Commissioner of Trials, Vanessa Facio-Lince, who approved Department Imposed Training. Charges and Specifications are dismissed for plea purposes.

Andre D. Applewhite

Chief Prosecutor
New York City Civilian Complaint Review Board

APPROVED

OCT 21 2025
Jessie Tisch
JESSICA S. TISCH
POLICE COMMISSIONER

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO.
C-031977BOOK & PAGE NO.
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PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, FITTS	FIRST ANDREW	M.I.	COMMAND 530
SHIELD NO. 977	TAX REGISTRY NO. 938484	SOCIAL SECURITY NO.	DATE APPOINTED 07/11/2005	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Sergeant Andrew Fitts, on or about June 3, 2020, at approximately 2058, while assigned to CD IRS and on duty, in the vicinity of Cadman Plaza West between Pierrepont Street and Montague Street, Kings County, wrongfully used force, in that he shoved § 87(2)(b) with a baton without police necessity.	DISMISSED	TRAINING Respondent will comply with and complete re-training prescribed by the Department.
2. Sergeant Andrew Fitts, on or about January 5, 2021, at approximately 1043, while assigned to CD IRS and on duty, in the vicinity of 100 Church Street New York County, provided an inaccurate statement to the CCRB, in regard to the June 3 2020 incident involving § 87(2)(b) including, but not limited to, "I cannot recall if I used force."	DISMISSED	


FIRST DEPUTY COMMISSIONER

7/22/25
DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)


POLICE COMMISSIONER

10/21/25
DATE